

OFFICE OF THE SECRETARY

PO Box 942883

Sacramento, CA 94283-0001



December 13, 2021

The Honorable Debra L. Givens
Presiding Judge of the Superior Court
County of Yuba
215 Fifth Street, Suite 200
Marysville, CA 95901

Re: Francisco Orozco
CDCR No: AD3119
Case No: CRF09-479
Date of Sentence: April 19, 2010

Dear Honorable Debra L. Givens:

The purpose of this letter is to provide the court with the authority to resentence inmate Francisco Orozco, AD3119, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that upon, recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Orozco has received one Rules Violation Report since being received to the California Department of Corrections and Rehabilitation (CDCR) on June 8, 2010, however, he has remained disciplinary free since May of 2014. Inmate Orozco is currently assigned as a Clerk and also participates in College. Inmate Orozco has received numerous certificates and two laudatory chronos from group sponsors acknowledging his commitment and dedication to self-awareness and improvement groups.

The Honorable Debra L. Givens

Page 2

Having reviewed the enclosed documentation it appears that inmate Orozco's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Yuba County District Attorney's Office
Yuba County Public Defender's Office